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DEPARTMENT OF THE NAVY
NAVAL FACILITIES
ENGINEERING COMMAND
GUIDE SPECIFICATION

NFGS-00150D
30 September 1995

Superseding NFGS-00150C (06/95)

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NFGS-00150D

INSTRUCTIONS TO PROPOSERS

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Superseding NFGS-00150C (06/95)

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SECTION 00150

INSTRUCTIONS TO PROPOSERS
09/95

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NOTE: This section contains \@requirements for preparation and submission of bids for Request for Proposals construction contracts@\. The following clauses are from the Federal Acquisition Regulations (FAR), Department of Defense Federal Acquisition Regulation Supplement (DFARS), and the NAVFAC Contracting Manual, Baseline Provisions/Clauses JUN 1994 (FAC). Supplement Updates are through \&FAC-90-29 and DAC-91-8&\.

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NOTE: This revision "D" to NFGS-00150 amends the issue dated 30 June 1995 by adding or revising articles as indicated by change tokens.

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1.1 [UNIT PRICES

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NOTE: Use this paragraph if there are unit prices in addition to the Base Bid. Use FAR 52.212-11 also. Coordinate with preparer of Section 01025.

****

Under the bidding items furnished on Standard Form 1442 (Solicitation, Offer, and Award) bidders shall state prices for each bid item given hereinafter.

(1) Base Bid 0001 shall be the entire work complete in accordance with the drawings and specifications based on the following breakdown:

price items listed below; $_____.

(b) Unit price per [_____] for [_____].
$_____per[____] x [____] = $_____
Total Price Base Bid Item 0001 $_____

Bids must be submitted on all items. Failure to bid on all items may result in the Bid being rejected as non-responsive.

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1.2 DFARS 252.204-7001, COMMERCIAL AND GOVERNMENT ENTITY (CAGE) CODE REPORTING (DEC 1991)

(a) The Offeror is requested to enter its CAGE code on its offer in the block with its name and address. The CAGE code entered must be for that name and address. Enter CAGE before the number.

(b) If the Offeror does not have a CAGE code, it may ask the Contracting Officer to request one from the Defense Logistics Services Center (DLSC). The Contracting Officer will--

(1) Ask the Contractor to complete section B of a DD Form 2051, Request for Assignment of a Commercial and Government Entity (CAGE) Code;

(2) Complete section A and forward the form to DLSC; and

(3) Notify the Contractor of its assigned CAGE code.

(c) Do not delay submission of the offer pending receipt of a CAGE code.

1.3 DFARS 252.209-7001, DISCLOSURE OF OWNERSHIP OR CONTROL BY THE GOVERNMENT OF A TERRORIST COUNTRY (SEP 1994)

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NOTE: Always use if greater than $100,000.
****

(a) Definitions. As used in this provision--

(1) "Government of a terrorist country" includes the state and the government of a terrorist country, as well as any political subdivision, agency, or instrumentality thereof.

(2) "Terrorist country" means a country determined by the Secretary of State, under section 6(j)(1)(A) of the Export Administration Act of 1979 (50 U.S.C. App. 2405(j)(i)(A)), to be a country the government of which has repeatedly provided support for acts of international terrorism. As of the date of this provision, terrorist countries include: Cuba, Iran, Iraq, Libya, North Korea, Sudan, and Syria.

(3) "Significant interest" means--

(i) Ownership of or beneficial interest in 5 percent or more of the firm's or subsidiary's securities. Beneficial interest includes holding 5 percent or more of any class of the firm's securities in "nominee shares," "street names," or some other method of holding securities that does not disclose the beneficial owner;

(ii) Holding a management position in the firm, such as a director or officer;

(iii) Ability to control or influence the election, appointment, or tenure of directors or officers in the firm;

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(iv) Ownership of 10 percent or more of the assets of a firm such as equipment, buildings, real estate, or other tangible assets of the firm; or

(v) Holding 50 percent or more of the indebtedness of a firm.

(b) Prohibition on award. In accordance with 10 U.S.C. 2327, no contract may be awarded to a firm or a subsidiary of a firm if the government of a terrorist country has a significant interest in the firm or subsidiary, unless a waiver is granted by the Secretary of Defense.

(c) Disclosure. If the government of a terrorist country has a significant interest in the Offeror or a subsidiary of the Offeror, the Offeror shall disclose such interest in an attachment to its offer. If the Offeror is a subsidiary, it shall also disclose any significant interest the government of a terrorist country has in any firm that owns or controls the subsidiary. The disclosure shall include--(1) Identification of each government holding a significant interest; and

(2) A description of the significant interest held by each government.

1.4 DFARS 252.209-7003, DISCLOSURE OF COMMERCIAL TRANSACTIONS WITH THE GOVERNMENT OF A TERRORIST COUNTRY (SEP 1994)

****
NOTE: Always use if greater than $5,000,000.
****

(a) Definitions. "Government of a terrorist country" and "terrorist country" are defined in the Reporting of Commercial Transactions with the Government of a Terrorist Country clause of this solicitation.

(b) Disclosure.

(1) Section 843 of the National Defense Authorization Act for Fiscal Year 1994 (Pub. L. 103-160) requires offerors to disclose commercial transactions conducted with the government of a terrorist country. If this offer exceeds $5,000,000, and if the Offeror has conducted such transactions, the Offeror shall disclose, in an attachment to its offer, each commercial transaction that it has conducted with the government of a terrorist country since February 28, 1994. The disclosure shall include--

(i) Identification of the government with which each transaction was conducted; and

(ii) The nature of each transaction.

(2) This disclosure requirement does not apply to--

(i) Transactions conducted by affiliates or subsidiaries of the Offeror; or

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(ii) Payment or receipt of payment of a judgment or award ordered by a court or arbitral tribunal of competent jurisdiction.

1.5 FAR 52.210-2, AVAILABILITY OF SPECIFICATIONS LISTED IN THE DOD INDEX OF SPECIFICATIONS AND STANDARDS (DODISS) (MAR 1994)

Single copies of specifications cited in this solicitation may be obtained by submitting a written request to the supply point listed below. The request must contain the title of the specification, its number, date, applicable amendment(s), and the solicitation or contract number. A telephone order entry system is available with the use of a touch tone telephone. A Customer Number is required to use this system and may be obtained by written request to the address listed below or by telephone (215-697-2179). In case of urgency, telephone or telegraphic requests are acceptable. Voluntary standards, which are not available to offerors and contractors from Government sources, may be obtained from the organization responsible for their preparation, maintenance, or publication.

Standardization Document Order Desk, Building 4, Section D 700 Robbins Avenue Philadelphia, PA 19111-5094

Facsimile Number -- -- -- (215) 697-2978
Telephone Order Entry System (TOES)
Numbers ----215-697-1187 through and including 215-697-1197

1.6 DFARS 252.210-7001, AVAILABILITY OF SPECIFICATIONS AND STANDARDS NOT LISTED IN DODISS, DATA ITEM DESCRIPTIONS NOT LISTED IN DOD 5010.12 - L, AND PLANS, DRAWINGS, AND OTHER PERTINENT DOCUMENTS (DEC 1991)

****
NOTE: Insert in the blank below, the activity and the complete address.
****

Offers may obtain the specifications, standards, plans, drawings, data item descriptions, and other pertinent documents cited in this solicitation by submitting request to: [_____].

Include the number of the solicitation and the title and number of the specification, standard, plan, drawing, or other pertinent document.

1.7 DFARS 252.210-7002, AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS, STANDARDS, PLANS, DRAWINGS, DATA ITEM DESCRIPTIONS, AND OTHER PERTINENT DOCUMENTS (DEC 1991)

****
NOTE: At the blank below, insert complete address.
****

The specifications, standards, plans, drawings, data item descriptions, and other pertinent documents cited in this solicitation are not available for distribution but may be examined at the following location:

[_____]

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1.8 FAR 52.212-7, NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE USE (SEP 1990)

****
NOTE: Contracting Officer check appropriate box.
****

Any contract awarded as a result of this solicitation will be a __ DX rated order; __ do rated order certified for national defense use under the Defense Priorities and Allocations System (DPAS) (15 CFR part 700), and the Contractor will be required to follow all of the requirements of this regulation.

1.9 FAR 52.215-5, SOLICITATION DEFINITIONS (JUL 1987)

"Government" means United States Government.

"Offer" means "proposal" in negotiation.

"Solicitation" means a request for proposals (RFP) or a request for quotations (RFQ) in negotiation.

1.10 FAR 52.215-7, UNNECESSARILY ELABORATE PROPOSALS OR QUOTATIONS (APR 1984)

Unnecessarily elaborate brochures or other presentations beyond those sufficient to present a complete and effective response to this solicitation are not desired and may be construed as an indication of the offeror's or quoter's lack of cost consciousness. Elaborate art work, expensive paper and bindings, and expensive visual and other presentation aids are neither necessary not wanted.

1.11 FAR 52.215-8, AMENDMENTS TO SOLICITATIONS (DEC 1989)

(a) If this solicitation is amended, then all terms and conditions which are not modified remain unchanged.

(b) Offerors shall acknowledge receipt of any amendment to this solicitation by

(1) signing and returning the amendment:

(2) identifying the amendment number and date in the space provided for this purpose on the form for submitting an offer,

(3) letter or telegram, or

(4) facsimile, if facsimile offers are authorized in the solicitation. The Government must receive the acknowledgment by the time specified for receipt of offers.

1.12 FAR 52.215-9, SUBMISSION OF OFFERS (DEC 1989)

(a) Offers and modifications thereof shall be submitted in sealed envelopes or packages

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(1) addressed to the office specified in the solicitation, and

(2) showing the time specified for receipt, the solicitation number, and the name and address of the offeror.

(b) Telegraphic offers will not be considered unless authorized by the solicitation; however, offers may be modified by written or telegraphic notice.

(c) Facsimile offers, modifications or withdrawals will not be considered unless authorized by the solicitation.

(d) Item samples, if required, must be submitted within the time specified for receipt of offers. Unless otherwise specified in the solicitation, these samples shall be

(1) submitted at no expense to the Government, and

(2) returned at the sender's request and expense, unless they are destroyed during preaward testing.

1.13 FAR 52.215-10, LATE SUBMISSIONS, MODIFICATIONS, AND WITHDRAWALS OF PROPOSALS (DEC 1989)

(a) Any proposal received at the office designated in the solicitation after the exact time specified for receipt will not be considered unless it is received before award is made and it

(1) Was sent by registered or certified mail not later than the fifth calendar day before the date specified for receipt of offers (e.g., an offer submitted in response to a solicitation requiring receipt of offers by the 20th of the month must have been mailed by the 15th);

(2) Was sent by mail or, if authorized by the solicitation, was sent by telegram or via facsimile and it is determined by the Government that the late receipt was due solely to mishandling by the Government after receipt at the Government installation;

(3) Was sent by U.S. Postal Service Express Mail Next Day Service-Post Office to addressee, not later than 5:00 p.m. at the place of mailing two working days prior to the date specified for receipt of proposals. The term "working days" excludes weekends and U.S. Federal holidays; or

(4) Is the only proposal received.

(b) Any modification of a proposal or quotation, except a modification resulting from the Contracting Officer's request for "best and final" offer, is subject to the same conditions as in subparagraphs (a)(1), (2) and (3) of this provision.

(c) A modification resulting from the Contracting Officer's request for "best and final" offer received after the time and date specified in the

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request will not be considered unless received before award and the late receipt is due solely to mishandling by the Government after receipt at the Government installation.

(d) The only acceptable evidence to establish the date of mailing of a late proposal or modification sent either by U.S. Postal Service registered or certified mail is the U.S. or Canadian Postal Service postmark both on the envelope or wrapper and on the original receipt from the U.S. or Canadian Postal Service. Both postmarks must show a legible date or the proposal, quotation, or modification shall be processed as if mailed late. "Postmark" means a printed, stamped, or otherwise placed impression (exclusive of a postage meter machine impression) that is readily identifiable without further action as having been supplied and affixed by employees of the U.S. or Canadian Postal Service on the date of mailing. Therefore, offerors or quoters should request the postal clerk to place a legible hand cancellation bull's eye postmark on both the receipt and the envelope or wrapper.

(e) The only acceptable evidence to establish the time of receipt at the Government installation is the time/date stamp of that installation on the proposal wrapper or other documentary evidence of receipt maintained by the installation.

(f) The only acceptable evidence to establish the date of mailing of a late offer, modification, or withdrawal sent by Express Mail Next Day Service-Post Office to Addressee is the date entered by the post office receiving clerk on the "Express Mail Next Day Service-Post Office to Address" label and the postmark on both the envelope or wrapper and on the original receipt from the U. S. Postal Service. "Postmark" has the same meaning as defined in paragraph (d) of this provision, excluding postmarks of the Canadian Postal Service. Therefore, offerors or quoters should request the postal clerk to place a legible hand cancellation bull's eye postmark on both the receipt and the envelope or wrapper.

(g) Notwithstanding paragraph (a) of this provision, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(h) Proposals may be withdrawn by written notice or telegram (including mailgram) received at any time before award. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision entitled "Facsimile Proposals." Proposals may be withdrawn in person by an offeror or an authorized representative, if the representative's identity is made known and the representative signs a receipt for the proposal before award.

1.14 FAR 52.215-12, RESTRICTION ON DISCLOSURE AND USE OF DATA (APR 1984)

Offerors or quoters who include in their proposals or quotations data that they do not want disclosed to the public for any purpose or used by the Government except for evaluation purposes, shall --

(a) Mark the title page with the following legend:

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"This proposal or quotation includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed--in whole or in part--for any purpose other than to evaluate this proposal or quotation. If, however, a contract is awarded to this offeror or quoter as a result of--or in connection with--the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extend provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets (insert numbers or other identification of sheets)"; and

(b) Mark each sheet of data it wishes to restrict with the following legend:

"Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal or quotation."

1.15 FAR 52.215-13, PREPARATION OF OFFERS (APR 1984)

(a) Offerors are expected to examine the drawings, specifications, Schedule, and all instructions. Failure to do so will be at the offeror's risk.

(b) Each offeror shall furnish the information required by the solicitation. The offeror shall sign the offer and print or type its name on the Schedule and each continuation sheet on which it makes an entry. Erasures or other changes must be initialed by the person signing the offer. Offers signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(c) For each item offered, offerors shall (1) show the unit price/cost, including, unless otherwise specified, packaging, packing, and preservation and (2) enter the extended price/cost for the quantity of each item offered in the "Amount" column of the Schedule. In case of discrepancy between a unit price/cost and an extended price/cost, the unit price/cost will be presumed to be correct, subject, however, to correction to the same extent and in the same manner as any other mistake.

(d) Offers for supplies or services other than those specified will not be considered unless authorized by the solicitation.

(e) Offerors must state a definite time for delivery of supplies or for performance of services, unless otherwise specified in the solicitation.

(f) Time, if stated as a number of days, will include Saturdays, Sundays, and holidays.

1.16 FAR 52.215-14, EXPLANATION TO PROSPECTIVE OFFERORS (APR 1984)

Any prospective offeror desiring an explanation or interpretation of the solicitation, drawings, specifications, etc., must request it in writing soon enough to allow a reply to reach all prospective offerors before the

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submission of their offers. Oral explanations or instructions given before the award of the contract will not be binding. Any information given to a prospective offeror concerning a solicitation will be furnished promptly to all other prospective offerors as an amendment of the solicitation, if that information is necessary in submitting offers or if the lack of it would be prejudicial to any other prospective offerors.

1.17 FAR 52.215-15, FAILURE TO SUBMIT OFFER (APR 1984)

Recipients of this solicitation not responding with an offer should not return this solicitation, unless it specifies otherwise. Instead, they should advise the issuing office by letter or postcard whether they want to receive future solicitations for similar requirements. If a recipient does not submit an offer and does not notify the issuing office that future solicitations are desired, the recipient's name may be removed from the applicable mailing list.

1.18 FAR 52.215-16, CONTRACT AWARD (JUL 1990)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, cost or price and other factors, specified elsewhere in this solicitation, considered.

(b) The Government may

(1) reject any or all offers if such action is in the public interest,

(2) accept other than the lowest offer, and

(3) waive informalities and minor irregularities in offers received.

(c) The Government may award a contract on the basis of initial offers received, without discussions. Therefore, each initial offer should contain the offeror's best terms from a cost or price and technical standpoint.

(d) The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the offer.

(e) A written award or acceptance of offer mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer, as provided in paragraph (d) above) whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award. Negotiations conducted after receipt of an offer do not constitute a rejection or counteroffer by the Government.

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(f) Neither financial data submitted with an offer, not representations concerning facilities or financing, will form a part of the resulting contract. However, if the resulting contract contains a clause providing for price reduction for defective cost or pricing data, the contract price will be subject to reduction if cost or pricing data furnished is incomplete, inaccurate, or not current.

(g) The Government may determine that an offer is unacceptable if the prices proposed are materially unbalanced between line items or subline items. An offer is materially unbalanced when it is based on prices significantly less than cost for some work and prices which are significantly overstated in relation to cost for other work, and if there is a reasonable doubt that the offer will result in the lowest overall cost to the Government, even though it may be the low evaluated offer, or it is so unbalanced as to be tantamount to allowing an advance payment.

****
NOTE: If the RFP is for construction, the Contracting Officer shall use the provision with its Alternate I. Substitute (d) of the basic provision for the following:
****

Alternate I (AUG 1991)

(d) The Government may accept any item or combination of items, unless doing so is precluded by a restrictive limitation in the solicitation or the offer.

****
NOTE: The DOD, Coast Guard, and NASA shall use the basic provision with its Alternate II if the Contracting Officer intends that proposals will be evaluated with, and award made after, discussions with the offerors. Substitute the following paragraph (c) for paragraph (c) of the basic provision:
****

Alternate II (NOV 1992)

(c) The Government intends to evaluate proposals and award a contract after written or oral discussions with all responsible offerors who submit proposals within the competitive range. However, each initial offer should contain the offeror's best terms from a cost or price and technical standpoint.

****
NOTE: DOD, the Coast Guard and NASA shall use the basic provision with its Alternate III if the contracting officer intends that proposals will be evaluated, and award made, without discussions with offerors. Substitute the following paragraph (c) for paragraph (c) of the basic provision.
****

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Alternate III (AUG 1991)

(c) The Government intends to evaluate proposals and award a contract without discussions with offerors. Therefore, each initial offer should contain the offeror's best terms from a cost or price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary.

1.19 FAR 52.215-17, TELEGRAPHIC PROPOSALS (JUL 1987)

****
NOTE: Use if telegraphic proposal authorized.
****

(a) Offerors or quoters may submit telegraphic responses to this solicitation. These responses must arrive at the place, and by the time, specified in the solicitation.

(b) Telegraphic responses shall refer to this solicitation and include the item or subitems, quantities, unit prices, time and place of delivery, all representations and other information required by this solicitation, and a statement specifying the extent of agreement with all the terms, conditions, and provisions of the solicitation.

(c) Telegraphic responses that fail to furnish required representations or information, or that reject any of the terms, conditions and provisions of the solicitation, may be excluded from consideration.

(d) Offerors must promptly sign and submit complete copies of the proposals in confirmation of their telegraphic responses.

(e) The term "telegraphic responses," as used in the provision, includes mailgrams.

ALTERNATE I (NOV 1988)

****
NOTE: As prescribed in 15.407(e)(2), substitute the following for paragraph (d) of the basic provision.
****

(d) Written confirmation of telegraphic proposals is not required.

1.20 FAR 52.215-18, FACSIMILE PROPOSALS (DEC 1989)

****
NOTE: Use if facsimile proposal is authorized.
****

(a) Definition. "Facsimile proposal," as used in this solicitation, means a proposal, modification of a proposal or withdrawal of a proposal that is transmitted to and received by the Government via electronic equipment that communicates and reproduces both printed and handwritten material.

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(b) Offerors may submit facsimile proposals as responses to this solicitation. These responses must arrive at the place, and by the time, specified in the solicitation.

(c) Facsimile proposals that fail to furnish required representations or information, or that reject any of the terms, conditions, and provisions of the solicitation, may be excluded from consideration.

(d) Facsimile proposals must contain the required signatures.

(e) The Government reserves the right to make award solely on the facsimile proposal. However, if requested to do so by the Contracting Officer, the apparently successful offeror agrees to promptly submit the complete original signed proposal.

(f) Facsimile receiving data and compatibility characteristics are as follows:

(1) Telephone number of receiving facsimile equipment: _____

(2) Compatibility characteristics of receiving facsimile equipment (e.g., make and model number, receiving speed, communications protocol): _____

(g) If the offeror chooses to transmit a facsimile proposal, the Government will not be responsible for any failure attributable to the transmission of receipt of the facsimile proposal including, but not limited to, the following:

(1) Receipt of garbled or incomplete proposal.

(2) Availability or condition of the receiving facsimile equipment.

(3) Incompatibility between the sending and receiving equipment.

(4) Delay in transmission or receipt of proposal.

(5) Failure of the offeror to properly identify the proposal.

(6) Illegibility of proposal.

(7) Security of proposal data.

1.21 FAR 52.215-30, FACILITIES CAPITAL COST OF MONEY (SEP 1987)

****
NOTE: Use when contract subject to the cost principles for contracts with commercial organizations (See Subpart 31.2).
****

(a) Facilities capital cost of money will be an allowable cost under the contemplated contract, if the criteria for allowability in subparagraph 31.205-10(a)(2) of the Federal Acquisition Regulation are met. One of the allowability criteria requires the prospective contractor to propose

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facilities capital cost of money in its offer.

(b) If the prospective Contractor does not propose this cost, the resulting contract will include the clause Waiver of Facilities Capital Cost of Money.

1.22 FAR 52.215-38, PREPARATION OF OFFERS--CONSTRUCTION (JAN 1991)

(a) Offers must be

(1) submitted on the forms furnished by the Government or on copies of those forms, and

(2) manually signed. The person signing an offer must initial each erasure or change appearing on any offer form.

(b) The offer form may require Offerors to submit offer prices for one or more items on various bases, including--

(1) Lump sum offer;

(2) Alternate prices;

(3) Units of construction; or

(4) Any combination of subparagraphs (b)(1) through (b)(3) of this provision.

(c) If the solicitation requires an offer on all items, failure to do so will disqualify the offer. If an offer on all items is not required, Offerors should insert the words "no offer" in the space provided for any item on which no price is submitted.

(d) Alternate offers will not be considered unless this solicitation authorized their submission.

1.23 FAC 5252.215-9301, MULTIPLE PROPOSALS (JUN 1994)

****

NOTE: Insert the following provision in all solicitations/contracts that allow submission of multiple proposals.

****

Proposers may, if they desire, submit multiple proposals. If multiple proposals are submitted, proposers must price separately each such proposal and assure that the required guarantee is in a sum sufficient to cover the highest possible amount upon which award can be made. In addition, they should assure that full technical and pricing details, as may be appropriate, are furnished so as to assure that their proposals can properly be evaluated without the need for the request for additional information. Unsolicited alternates, either additive or deductive, will not be considered.

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1.24 FAC 5252.215-9302, NUMBER OF COPIES/TIME OF RECEIPT (JUN 1994)

****
NOTE: Use when required.
****

All proposals should be submitted in [_____] copies of half-size copies and one full size set of ozalid prints. Instructions concerning the time and place of delivery are provided on the first page (Standard Form 1442) of this Request for Proposals. The price proposal, including acknowledgment of amendments, guarantee bond and completed representations and certifications, need only be submitted in triplicate.

1.25 FAC 5252.215-9303, REQUIRED TECHNICAL DATA (JUN 1994)

****
NOTE: Use when requirement for technical data.
****

The following technical data shall be indexed and submitted as part of the formal proposal. Proposers are advised that the required data listed below will be utilized for technical review and evaluation and used for determination of a "Quality Rating" by a Technical Evaluation Team. Catalog cuts and manufacturer's brochures describing finishes and equipment to be provided are helpful in assessing quality. To minimize costs, two submittals might include original brochures and the remaining eight to be black and white photocopies.

a. SPECIFICATIONS: FHA Description of Materials Form No. 2005 or HUD Description of Materials No. 92005 indicating the quality of materials, construction, finishes, fixtures, and equipment to be provided as applicable for, (1) foundations, (2) exterior walls, (3) interior walls and partitions, (4) concrete floor construction, (5) wood floor construction, (6) roof framing and roofing, (7) ceilings, (8) thermal insulation, (9) sound insulation, (10) windows, (11) exterior and interior doors and hardware, (12) screens, (13) kitchen cabinets and counters, (14) interior and exterior millwork, (15) finish flooring, (16) bath floors and wainscots, (17) painting and decorating, (18) window coverings, (19) plumbing fixtures, piping and soil lines, (20) heating systems, (21) air condition system (A/C to be provided only in authorized climatic zones), (22) interior electrical wiring and switches, (23) exhaust fans, (24) walks, (25) streets and parking areas, (26) landscaping, (27) exterior utility systems (water, electrical, gas, and sanitary and storm sewerage). Proposers may indicate other items, as desired. In order to simplify evaluation of proposals, proposers may, at their option, itemize any or all items included in their proposals that exceed the minimum requirements of HUD minimum property standards and modifications thereto in this RFP.

b. DRAWINGS: Originals shall be drawn on 28 x 40 inch format. Proposed prints shall be reduced to half size. One set of prints shall be submitted on original full size format.

(1) Overall site layout (1 inch = 100 feet scale) delineating streets, buildings, recreation, landscaping, and other major features. Utility site

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layout (1 inch = 100 feet scale).

(2) Site plan (1 inch = 40 feet scale) indicating enlisted areas, general layout of major utility lines (including location of hydrants), streets, driveways, parking, sidewalks, location of units, finished contours and drainage. Contours for existing and finish grades shall be one foot maximum.

(3) Typical development plan (1/8 inch = 1 foot-0 inches scale) for area around each type of building showing streets, walks, driveways and typical units (optional).

(4) Floor plan for each type of dwelling unit at 1/4 inch = 1 foot-0 inches scale, showing overall dimensions, room dimensions, typical furniture layouts, plumbing fixtures, kitchen layout, door swings, location electric lights, switches, outlets, fan, etc., heating and air conditioning diagrammatic layout, equipment, and the calculated gross and net floor area, of each type unit.

(5) Typical elevations. Scale: 1/8 inch = 1 foot-0 inches.

(6) Typical building cross section. Scale: 1/4 inch - 1 foot-0 inches.

(7) Typical wall, foundation, floor, and roof section, indicating design, materials, cavity walls, insulation, party wall, etc., for each type building. Scale 1 1/2 inches = 1 foot-0 inches.

(8) Typical interior elevations of kitchen and bathrooms, indicating typical cabinets and vanities. Scale 1/4 inch = 1 foot-0 inches.

NOTE: IF DRAWINGS REQUIRED IN (3) THROUGH (8) ABOVE ARE COMMON FOR MORE THAN ONE TYPE OF BUILDING OR DWELLING UNIT, SIMPLY INDICATE SO ON THE DRAWING. FOR EXAMPLE: "SAME FOR 4 BR EM DUPLEX" OR "SAME FOR ALL TWO STORY MULTI-FAMILY BUILDINGS."

c. ENERGY CONSUMPTION ANALYSIS: Completed Energy Consumption Calculation (see paragraph entitled "Energy Requirement").

d. DATA FORMS: Proposer shall submit all forms designated A through S furnished with this proposal.

NOTES: FAILURE TO SUBMIT ALL OF THE DATA INCLUDED IN THIS SECTION MAY BE CAUSE FOR DETERMINING A PROPOSAL UNACCEPTABLE AND, THEREFORE, NOT CONSIDERED FOR AWARD.

1.26 FAC 5252.215-9304, REQUIREMENTS FOR SPECIAL MARKING OF TECHNICAL DATA (JUN 1994)

****

NOTE: Use when applicable.

****

Proposers are advised that the technical evaluation and rating of proposals are conducted in strict confidence in that technical evaluation personnel and consultants review and rate each proposal without knowledge of the name

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of the proposer (including his A&E), or the price offered. Accordingly, proposer identification should not appear on any technical documents submitted for evaluation. The Navy assigned individual Identification Numbers at the time RFP's were issued. If you did not receive an Identification Number, one shall be obtained from [_____].

This number is to be used by each proposer to identify the technical portions of his proposal, submitted pursuant to the clause at "FAR 5252.215-9303, Required Technical Data." The proposer's name, address, signature, etc., as well as the assigned Identification Number, should only be inserted, as appropriate, on transmittal letters, pricing, bonds, etc., required by the RFP.

1.27 FAR 52.219-22, SIC CODE AND SMALL BUSINESS SIZE STANDARD (JAN 1991)

a. The standard industrial classification (SIC) code for this acquisition is [_____].

b. (1) The small business size standard is [_____]. (2) The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture, is 500 employees.

1.28 DFARS 252.219-7009, CERTIFICATE OF COMPETENCY (APR 1993)

(a) In the event of a determination of nonresponsibility on a small business offeror, the Contracting Officer will--

(1) Notify the Offeror, in writing, of the determination and of the Offeror's right, under Section 8(b)(7) of the Small Business Act, to request that the Small Business Administration (SBA) make a determination of the Offeror's responsibility under the Certificate of Competency Program.

(2) Withhold award until the Offeror's response is received or 14 calendar days from receipt of the notice by the Offeror.

(3) Upon timely receipt of an affirmative response from the Offeror, refer the matter to the SBA.

(4) Upon receipt of a negative response from the Offeror, or if a timely response is not received, award to another offeror.

(b) The Offeror shall notify the Contracting Officer, in writing, within 14 days of receipt of a notification of a nonresponsibility determination, as to whether or not it desires a request for an SBA determination of responsibility.

1.29 FAR 52.222-23, AFFIRMATIVE ACTION COMPLIANCE (APR 1984)

****

NOTE: Insert the applicable percentages and covered area from the Department of Labor Notice, as published in 45 FR 65979 (October 3, 1980 issue of

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the Federal Register).

****

Notice of requirement for affirmative action to ensure equal employment opportunity (APR 1984):

a. The offerors attention is called to the Equal Opportunity clause and the Affirmative Action Compliance Requirements for Construction clause of this solicitation.

b. The goals for minority and female participation, expressed in percentage terms for the Contractor's aggregate workforce in each trade on all construction work in the covered area, are as follows:

Goals for minority participation for each trade	Goals for female participation for each trade
[_____]	[_____]

These goals are applicable to all the Contractor's construction work performed in the covered area. If the Contractor performs construction work in a geographical area located outside of the covered area, the Contractor shall apply the goals established for the geographical area where the work is actually performed. Goals are published periodically in the Federal Register in notice form, and these notices may be obtained from any Office of Federal Contract Compliance Programs office.

c. The Contractor's compliance with Executive Order 11246 as amended, and the regulations in 41 CFR 60.4 shall be based on its implementation of the Equal Opportunity clause, (2) specific affirmative action obligations required by the clause entitled "Affirmative Action Compliance Requirements for Construction," and (3) its efforts to meet the goals. The hours of minority and female employment and training must be substantially uniform throughout the length of the contract, and in each trade. The Contractor shall make a good faith effort to employ minorities and women evenly on each of its projects. The transfer of minority or female employees or trainees from Contractor to Contractor, or from project to project, for the sole purpose of meeting the Contractor's goals shall be a violation of the contract, Executive Order 11246, as amended, and the regulations in 41 CFR 60.4. Compliance with the goals will be measured against the total work hours performed.

d. The Contractor shall provide written notification to the Director, Office of Federal Contract Compliance Programs, within 10 working days following award of any construction subcontract in excess of $10,000 at any tier for construction work under the contract resulting from this solicitation. The notification shall list the--

(1) Name, address, and telephone number of the subcontractor; (i) Employer identification number of the subcontractor;

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(2) Estimated dollar amount of the subcontract;

(3) Estimated starting and completion dates of the subcontract; and

(4) Geographical area in which the subcontract is to be performed.

e. As used in this Notice, and in any contract resulting from this solicitation, the "covered area" is [_____].

1.30 \&DFARS 252.228-7007 PAYMENT PROTECTIONS IN CONSTRUCTION CONTRACT BETWEEN $25,000 AND $100,000 (JUL 1995)&\

\&(a) The contractor shall submit a payment bond or one of the following alternatives to a payment bond:

(b) The penal sum of the bond or alternative payment protection shall be in the amount of $_____.

(c) The submission of acceptable alternative payment protection is required by _____.

(d) The bond or alternative shall provide payment protection for the full contract performance period plus a one-year period and shall authorize contracting officers to immediately access funds at any time and withhold them pending resolution by administrative or judicial proceedings or mutual agreement of the parties, except for escrow agreements which provide for a disputes resolution procedure.

(e) Except for escrow agreements which provide their own protection procedures, the contracting officer is authorized to access funds under the alternative payment protection when it has been alleged in writing by a supplier of labor or material that a nonpayment has occurred.

(f) When a tripartite escrow agreement is used, the contractor shall utilize only suppliers of labor and material who signed the escrow agreement.&\

1.31 FAC 5252.228-9300, INDIVIDUAL SURETY/SURETIES (JUN 1994)

As prescribed in FAR 28.203(a), individual sureties will be permitted. In order for the Contracting Officer to make a determination as to the acceptability of individuals proposed as sureties, as prescribed in FAR 28.203(b), all proposers who submit bonds which are executed by individual sureties are requested to furnish additional information in support of SF-28, Affidavit of Individual Surety, with the bonds. Pursuant to Instruction 3(b) of Standard Form 24, the Bond, Standard Form 25, the Performance Bond, and the Standard Form 25A, the Payment Bond, the Contracting Officer requests the following information:

(a) Equity Securities (Stock):

(1) State the place(s) of incorporation and address of the principal place of business for each issuing corporation listed.

(2) State whether the security issued was issued by public or private offering and give the place of registration of the security.

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(3) State whether the security is presently, actively traded.

(b) Debt securities (Bonds) and Certificates of Deposit:
(1) List the type of bonds held and their maturity dates.
(2) State the name, address, and telephone number of the issuing agency, firm or individual.
(3) State the complete address(es) where the bonds are held.
(4) State whether the bonds have been pledged as security or have otherwise been encumbered.

(c) Real Property Interests:
(1) Provide complete recording data for the conveyance of each parcel or interest listed to the individual proposed as surety.
(2) State whether the values listed are based upon personal evaluation or evaluation of an experienced real estate appraiser. If available, provide copies of written appraisals.
(3) State the method(s) of valuation upon which appraisal is based.
(4) Provide the assessed value of each property interest listed utilized by the appropriate tax assessor for purposes of property taxation.
(5) Provide the telephone number, including area code, for the tax assessor who performed the most recent tax assessment.
(6) State whether each real property interest listed is currently under lien or in any way encumbered and the dollar amount of each such lien or encumbrance.

(d) Persons Proposed as Individual Sureties:
(1) A current list of all other bonds (bid, performance, and payment) on which the individual is a surety and bonds for which the individual is requesting to be a surety.
(2) A statement as to the percent of completion of projects for which the individual is bound on a performance bond.

This information is necessary to enable the Contracting Officer to evaluate the sufficiency of the surety's net worth in a timely manner.

1.32 FAC 5252.228-9302, BID GUARANTEE (JUN 1994)

Each bidder shall submit with its bid a guarantee bond (Standard Form 24) executed by a surety company holding a certificate of authority from the Secretary of the Treasury as an acceptable surety, or other security as provided in clause "FAR 52.228-1, Bid Guarantee." Security shall be in the sum of 20 percent of the largest amount for which award can be made under the bid submitted, but in no case to exceed $3,000,000. The bid guarantee bond shall be accompanied by a copy of the agent's authority to sign bonds for the surety company.

1.33 FAR 52.233-2, SERVICE OF PROTEST (NOV 1988)

****
NOTE: At the blank below, Contracting Officer should designate the official and location where a protest may be served on the Contracting Officer.
****

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(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the General Accounting Office (GAO) or the General Services Administration Board of Contract Appeals (GSBCA), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from [_____].

(b) The copy of any protest shall be received in the office designated above on the same day a protest is filed with the GSBCA or within one day of filing a protest with the GAO.

1.34 FAR 52.236-4, PHYSICAL DATA (APR 1984)

****

NOTE: Insert this clause when physical data (e.g., test borings, hydrographic, weather conditions data) will be furnished or made available to offerors. All information to be furnished or made available to offerors before award that pertains to the performance of the work should be identified in the clause. When subparagraphs are not applicable they may be deleted.

****

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by [_____] [insert a description of investigational methods used, such as surveys, auger borings, core borings, test pits, probings, test tunnels].

(b) Weather conditions [_____] [insert a summary of weather records and warnings].

(c) Transportation facilities [_____] [insert a summary of transportation facilities providing access from the site, including information about their availability and limitations].

(d) [_____] [Insert other pertinent information].

1.35 FAR 52.236-27, SITE VISIT (CONSTRUCTION) (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigation and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) Site visits may be arranged during normal duty hours by contacting:

Name: _____

Address: _____

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Telephone: _____

****
NOTE: If an organized site visit will be conducted, use Alternate I.
****

ALTERNATE I (FEB 1995)

(b) An organized site visit has been scheduled for:

_____
(Insert date and time)

(c) Participants will meet at--

_____
(Insert location).

1.36 DFARS 252.236-7007, ADDITIVE OR DEDUCTIVE ITEMS (DEC 1991)

****
NOTE: Applies only to solicitations and contracts with additive or deductive bid items.
****

(a) The low offeror and the items to be awarded shall be determined as follows

(1) Prior to the opening of bids, the Government will determine the amount of funds available for the project.

(2) The low offeror shall be the Offeror that--(i) Is otherwise eligible for award; and (ii) Offers the lowest aggregate amount for the first or base bid item, plus or minus (in the order stated in the list of priorities in the bid schedule) those additive or deductive items that provide the most features within the funds determined available.

(3) The Contracting Officer shall evaluate all bids on the basis of the same additive or deductive items. (i) If adding another item from the bids schedule list of priorities would make the award exceed the available funds for all offerors, the Contracting Officer will skip that item and go to the next item from the bid schedule of priorities; and (ii) Add that next item if an award may be made that includes that item and is within the available funds.

(b) The Contracting Officer will use the list of priorities in the bid schedule only to determine the low offeror. After determining the low offeror, an award may be made on any combination of items if--

(1) It is in the best interest of the Government;

(2) Funds are available at the time of award; and

(3) The low offeror's price for the combination to be awarded is less

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than the price offered by any other responsive, responsible offeror.

(c) Example. The amount available is $100,000. Offeror A's base bid and four additives (in the order stated in the list of priorities in the bid Schedule) are $85,000, $10,000, $8,000, $6,000, and $4,000. Offeror B's base bid and four additives are $80,000, $16,000, $9,000, $7,000, and $4,000. Offeror A is the low offeror. The aggregate amount of offeror A's bid for purposes of award would be $99,000, which includes a base bid plus the first and fourth additives. The second and third additives were skipped because each of them would cause the aggregate bid to exceed $100,000.

1.37 FAR 52.252-1, SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (JUN 1988)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

1.38 FAR 52-252-3, ALTERATIONS IN SOLICITATION (APR 1984)

****
NOTE: Fill in the "alterations" as allowed by FAR, i.e., technical proposals in severable parts to meet agency requirements--cost separate from technical, or further breakdown to include administrative, organization, etc; how to breakdown cost and what format to be submitted.
****

Portions of this solicitation are altered as follows:

[_____].

1.39 [FAR 52.252-5, AUTHORIZED DEVIATIONS IN PROVISIONS (APR 1984)

****
NOTE: Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.
****

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any [_____] [insert regulation name] (48 CFR Chapter [_____] provision with an authorized deviation is indicated

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by the addition of "(DEVIATION)" after the name of the regulation.]

****

NOTE: Suggestions for improvement of this specification will be welcomed using the Navy "Change Request Forms" subdirectory located in SPECSINTACT in Jobs or Masters under "Forms/Documents" directory or DD Form 1426. Suggestions should be forwarded to:

Commanding Officer
Naval Construction Battalion Center
NAVFAC 15G/CESO 158
1000 23rd Avenue
Port Hueneme, CA 93043-4301

FAX: (805) 985-6465/982-5196

****

-- End of Section --

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****
DEPARTMENT OF THE NAVY GENERAL NOTES (October 1995)
NAVAL FACILITIES
ENGINEERING COMMAND
****

GENERAL NOTES

Guidance for use of this Naval Facilities Guide Specification (NFGS):

1. The NFGS is in the three-part section format established by the Construction Specifications Institute and adopted by the Department of the Navy. It is designed to ease preparation of the project specification section with the SPECSINTACT Processing System.

2. All technical notes are inserted in the body of the NFGS, separated from text by lines of asterisks. All notations immediately precede the text to which they apply. DO NOT INCLUDE NOTES OR NOTATIONS IN THE PROJECT SPECIFICATION SECTION. (Notes can be deleted automatically when using SPECSINTACT.)

3. Do not refer to the NFGS in the project specification. Use it as a manuscript, editing and modifying to meet project requirements. Where "as shown," "as indicated," "as detailed," or similar words are used, include all requirements so designated on the project drawings.

4. Do not include in the project specification:

    a. Signature Sheet
    b. Table of Contents
    c. Notes
    d. Sketches, if any
    e. General Notes
    f. Other supplemental information, if any, attached to this guide specification.

5. Place project title in upper left corner of each page and limit to 66 character spaces on one line. (Automatically printed when using SPECSINTACT if the project title is entered as the title in the Job Set-Up Screen).

6. Place project specification number in upper right corner of each page. (Automatically printed when using SPECSINTACT if the project specification number is entered as the job name in the Job Set-Up Screen.)

7. Center project specification section number and page number at bottom of each page of the section created from this guide specification. (Automatically printed when using SPECSINTACT.)

8. Where numbers, symbols, words, phrases, clauses, sentences, or paragraphs in this guide specification are enclosed in brackets, [], a choice or modification must be made; delete inapplicable portion(s) and brackets. Where blank spaces enclosed in brackets occur, insert appropriate data. Delete inapplicable text and, if not using

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SPECSINTACT, renumber subsequent articles, paragraphs, sub-paragraphs, accordingly. (Renumbering is done automatically during the print process when using SPECSINTACT.)

9. The article "REFERENCES" never contains numbered paragraphs or subparagraphs. Each organization's publications are listed beneath the organization name. Revision letters or dates identifying the current edition appear in parentheses followed by the title.

10. Use the latest issue of the referenced publications, but only after reviewing to ensure that it will satisfy the minimum essential requirements of the project. If the latest issue does not satisfy project requirements:

    1. Use the issue shown; or
    2. Select and refer to a document which does; or
    3. Incorporate the pertinent requirements into the project specification.

    Inform NAVFACENGCOM 15G, if the latest issue of a referenced publication is not compatible with this guide specification.

    Delete those referenced publications not used for the project specification.

11. The "SUBMITTALS" article in Part 1 of the section includes a SPECSINTACT coding. This provides an automated project "Submittals Register" when utilizing the SPECSINTACT Processing System. The system prints two letters and two numbers on the hard copy for each submittal type (i.e. SD-14 for "Samples"). The letters and numbers (i.e., SD-14 for "Samples") are submittal descriptions defined in Section 01300, "Submittals."

12. Do not repeat information shown on the drawings in the specification. Use the specifications to establish quality of materials and workmanship, methods of installation, equipment functions, and required testing. Use the drawings to indicate dimensions, relationship of materials, quantities, and location and capacity of equipment. Use keywords common between the specifications and drawings.

13. CAUTION: Coordination of this section with other sections of the project specification and with the drawings is mandatory. If materials or equipment are to be furnished under this section and installed under other sections or are indicated on the drawings, state that fact clearly for each type of material and item of equipment. Review the project specifications and drawings to ensure that complete and operational systems and equipment will be provided.

14. Changes or revisions to this document, since the date of original NAVFAC approval, have been performed by the Guide Specifications Division (NAVFAC 15G). (Phone: (805) 982-6103, DSN 551-6103), FAX: (805) 985-6465/982-5196.

15. Suggestions for improvement of this specification will be welcomed using the Navy "Change Request Form" subdirectory located in

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SPECSINTACT in Jobs or Masters under "Forms/Documents" directory or DD Form 1426. Forward to:

Commanding Officer
Naval Construction Battalion Center
NAVFAC 15G/CESO 158
1000 23rd Avenue
Port Hueneme, CA 93043-4301

FAX: (805) 985-6465/982-5196

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a. NAME (Last, First, Middle Initial)	b. ORGANIZATION	
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8. PREPARING ACTIVITY

a. NAME MS. JOAN SAMSON, P.E.	b. TELEPHONE (*Include Area Code*) (1) Commercial (805) 982-5543 (2) AUTOVON 551-5543
c. ADDRESS (*Include Zip Code*) NAVAL CONSTRUCTION BATTALION CENTER NAVFAC 15G/CESO 158, 1000 23rd AVENUE PORT HUENEME, CA 93043-4301	IF YOU DO NOT RECEIVE A REPLY WITHIN 45 DAYS, CONTACT: Defense Quality and Standardization Office 5203 Leesburg Pike, Suite 1403, Falls Church, VA 22041 Telephone (703) 756-2340 AUTOVON 289-2340

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